

**Expungement Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant
Gregg M. Gelber

Case Number: 25-01846

vs.

Respondents
Morgan Stanley
and Oppenheimer & Co., Inc.

Hearing Site: Boca Raton, Florida

Awards are rendered by independent arbitrators who are appointed pursuant to Rule 13806 of the Code of Arbitration Procedure (“Code”) to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Members

The expungement hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

For Claimant Gregg M. Gelber (“Claimant”): David I. Hantman, Esq., Bressler, Amery & Ross, P.C., New York, New York.

For Respondent Morgan Stanley (“Morgan Stanley”): Brandy Fernandez, Esq., Morgan Stanley, St. Petersburg, Florida.

For Respondent Oppenheimer & Co., Inc. (“Oppenheimer”): Alexa P. Saberito, Esq., Oppenheimer & Co., Inc., New York, New York.

CASE INFORMATION

Statement of Claim filed on or about: September 3, 2025.
Claimant signed the Submission Agreement: September 4, 2025.

Statement of Answer filed by Morgan Stanley on or about: September 22, 2025.
Morgan Stanley signed the Submission Agreement: September 9, 2025.

Statement of Answer filed by Oppenheimer on or about: October 14, 2025.
Oppenheimer signed the Submission Agreement: October 14, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim seeking expungement of customer dispute information from registration records maintained by the Central Registration Depository ("CRD").

In the Statement of Answer, Morgan Stanley did not oppose Claimant's expungement request.

In the Statement of Answer, Oppenheimer did not oppose Claimant's expungement request and denied the allegations made in the Statement of Claim.

RELIEF REQUESTED

In the Statement of Claim, Claimant (CRD Number 4332564) requested expungement of all references to Occurrence Number 2352460 from the CRD registration records.

In the Statement of Answer, Morgan Stanley requested that any and all forum fees for this matter, which solely concern expungement, be assessed against Claimant.

In the Statement of Answer, Oppenheimer opposed any monetary damages demands either explicitly or implicitly stated by Claimant in his Statement of Claim.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrators acknowledge that they have each read the pleadings and other materials filed by the parties.

On September 10, 2025, Claimant advised that the customers in Occurrence Number 2352460 ("Customers") were served with a copy of the Statement of Claim within 10 days of filing the Statement of Claim and provided proof of service.

On October 17, 2025, Claimant advised that the Customers were served with a copy of Morgan Stanley's Statement of Answer. The Panel determined that the Customers were served with a copy of Morgan Stanley's Statement of Answer within 10 days of its filing.

On October 15, 2025, Claimant advised that the Customers were served with a copy of Oppenheimer's Statement of Answer within 10 days of its filing and provided proof of service.

The Panel conducted a recorded hearing by videoconference on December 8, 2025, so the parties could present oral argument and evidence on Claimant's request for expungement. Claimant appeared by videoconference at the expungement hearing. Morgan Stanley appeared at the expungement hearing and took no position on the request for expungement. Oppenheimer appeared at the expungement hearing and as stated in the Statement of Answer, did not oppose the request for expungement.

The Customers did not appear at the expungement hearing.

No authorized representative of a state securities regulator appeared at the expungement hearing.

The Panel noted Claimant's representation that a prior arbitration panel or court has not previously ruled on expungement of the same occurrence in the CRD.

The Panel reviewed the settlement documentation related to Occurrence Number 2352460, considered the amount of payment made to any party to the settlement, and considered other relevant terms and conditions of the settlement. The Panel noted that the settlement was not conditioned on any party to the settlement not opposing the expungement request and that Claimant did not contribute to the settlement amount.

AWARD

After considering the pleadings, the testimony and evidence presented at the expungement hearing, and any post-hearing submissions, the Panel has decided in full and final resolution of the issues submitted for determination as follows:

1. The Panel awards the expungement of all references to Occurrence Number 2352460 from registration records maintained by the CRD for Claimant Gregg Michael Gelber (CRD Number 4332564) with the understanding that, pursuant to Rule 2080, Claimant Gregg Michael Gelber must obtain confirmation from a court of competent jurisdiction before the CRD will execute the expungement directive.

Unless specifically waived in writing by FINRA, parties seeking judicial confirmation of an arbitration award containing customer dispute expungement relief must name FINRA as an additional party and serve FINRA with all appropriate documents.

Pursuant to Rule 13805 of the Code, the Panel has made the following affirmative findings of fact:

The claim, allegation, or information is factually impossible or clearly erroneous; and

The registered person was not involved in the alleged investment-related sales practice violation, forgery, theft, misappropriation, or conversion of funds.

The Panel has made the above findings based on the following reasons:

The allegations in Disclosure 1 of 1 in Claimant's BrokerCheck® Report are that Claimant was involved in "unsuitable investments, over-concentrations, misrepresentations, and omissions of material information, and failure to supervise", in connection with the sale of annuities to the Customers. The annuities were Brighthouse Annuities ("Annuities").

The facts establish that only Financial Advisor ("FA 1"), and not Claimant had any involvement with the Customers' investment in the Annuities at Oppenheimer, and that none of Claimant's activities after he took over these accounts at Morgan Stanley were inappropriate or violative. Evidence for the facts are:

- (1) Exhibit Numbers 2-5 showing FA 1 and not Claimant was involved in the purchases of these Annuities at Oppenheimer.

- (2) The Statement of Claim, Exhibit Number 7, which does not allege that Claimant was involved in these sales at Oppenheimer;
- (3) Exhibit Numbers 9 and 10, Oppenheimer's and Morgan Stanley's Answers to the Statement of Claim, both of which establish that FA 1 and not Claimant had any involvement with the sales of these Annuities to the Customers prior to February 2018;
- (4) Exhibit Number 10, the letter of withdrawal of the complaint as to Morgan Stanley, with prejudice and without compensation;
- (5) Exhibit Numbers 12 and 13, which show that Claimant's activity with respect to the Customers all occurred after February 2018 and was entirely appropriate and non-violative;
- (6) Claimant's testimony, which is credible, supported by the evidence above, and uncontested as to his lack of involvement in the sales practice violations alleged in this case; and
- (7) The Customers' settlement with Oppenheimer, which the Panel reviewed and which was for a nominal amount and did not restrict the Customers' ability to contest expungement.

For those reasons and based on those facts, the Panel finds: Disclosure 1 of 1 in Claimant's BrokerCheck® Report was clearly erroneous and Claimant was not involved in any investment-related sales practice violation regarding the purchase of the three Annuities.

2. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$ 2,000.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, as parties, Morgan Stanley and Oppenheimer are each assessed the following:

Member Surcharge	= \$ 2,600.00
Member Process Fee	= \$ 5,005.00

Hearing Session Fees and Assessments

The Panel has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator(s), including a pre-hearing conference with the Arbitrator(s), which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) hearing session on expungement request @ \$1,725.00/session	= \$	1,725.00
Hearing: December 8, 2025 1 session		
Total Hearing Session Fees	= \$	1,725.00

The Panel has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATION PANEL

Alden Sharp Adkins	-	Public Arbitrator, Presiding Chairperson
Mark S. Foster	-	Public Arbitrator
Avery B. Goodman	-	Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Concurring Arbitrators' Signatures

Alden Sharp Adkins

Alden Sharp Adkins
Public Arbitrator, Presiding Chairperson

12/11/2025

Signature Date

Mark S. Foster

Mark S. Foster
Public Arbitrator

12/12/2025

Signature Date

Avery B. Goodman

Avery B. Goodman
Public Arbitrator

12/12/2025

Signature Date

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December 12, 2025

Date of Service (For FINRA Dispute Resolution Services use only)